

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

6. S-CV-0050858 BROUSSARD, BRANDON v. GENERAL MOTORS

Defendant's Motion for Summary Judgment; or in the Alternative Summary Adjudication

Appearances of the parties are required at the hearing.

7. S-CV-0051858 VIVINT SOLAR DEVELOPER v. TYLER, GREGORY

Defendant Gregory Tyler's Counsel Ashley Monique DeGuzman's Motion to be Relieved as Counsel

The motion to be relieved as counsel is denied as moot in light of defendant's substitution of attorney filed with the court on May 1, 2026.

8. S-CV-0052893 RUIZ-ANGEL, ELIAN v. DEFENDER TREE SERVICE

Defendants Douglas W. Cunningham and Carlene J. Cunningham, Trustees of the Cunningham Family 1995 Trust dated February 16, 1995 Motion for Summary Judgment and/or Adjudication

Preliminary Matters

Defendants' request for judicial notice number 1 is denied. Defendants' request for judicial notice number 2 is granted.

Plaintiff's objection is sustained.

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

Defendants move for summary judgment or, in the alternative, summary adjudication as to plaintiff's first amended complaint ("FAC"). A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).)